EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

# FIFTH SECTION

# DECISION

Application no. 8113/18
Mikheil SAAKASHVILI
against Ukraine

The European Court of Human Rights (Fifth Section), sitting on 8 June 2023 as a Committee composed of:

Carlo Ranzoni*, President*,
Mattias Guyomar,
Mykola Gnatovskyy*, judges*,

and Martina Keller, *Deputy Section Registrar,*

Having regard to:

the application (no. 8113/18) against Ukraine lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on 26 March 2018 by Mr Mikheil Saakashvili, a stateless person at the material time, who was born in 1967 and is currently detained in Georgia ("the applicant"), and who was represented by Mr N. Kulchytskyy, a lawyer practising in Kyiv;

Having deliberated, decides as follows:

## SUBJECT MATTER OF THE CASE

1. The case concerns various alleged violations of the applicant's rights in 2017 and 2018 (see paragraph 10 below).

2. The applicant is a former President of Georgia who became a naturalised Ukrainian national on 29 May 2015 and was actively involved in Ukrainian politics.

3. On 26 July 2017 his Ukrainian citizenship was revoked.

4. In December 2017, after criminal proceedings had been instituted against him on suspicion of abetting a criminal organisation, the Ukrainian Security Service conducted a search of his home and detained him for two brief periods, one of several hours and one of several days.

5. On 12 February 2018 the State Border Service forcefully expelled the applicant from Ukraine.

6. On 3 March 2018 the Kyiv Pecherskyy District Court rejected as unfounded a complaint by the applicant's lawyer that the Prosecutor General's Office had committed an unlawful omission by refusing to launch a criminal investigation into the circumstances of the applicant's expulsion.

7. On 28 May 2019 the newly elected President of Ukraine restored the applicant's Ukrainian nationality, after which the latter returned to Ukraine and was appointed to a high-ranking political post.

8. In early October 2020 the State Investigations Bureau made a public statement noting that a pre-trial investigation into, in particular, the applicant's expulsion had been completed and that there were indications that his arrest had been unlawful.

9. In October 2021 the applicant left Ukraine for Georgia.

## THE COURT'S ASSESSMENT

10. In his application to the Court the applicant raised various complaints: under Article 3 of the Convention – about his alleged ill-treatment during his arrests and expulsion; under Article 5 § 1 – about the alleged unlawfulness of his deprivations of liberty; under Article 6 § 2 – about public statements made by the Prosecutor General in early December 2017 regarding his alleged criminal activities; under Article 8 – about the revocation of his Ukrainian citizenship and the alleged unlawfulness of the search of his home; under Article 11 – about the impossibility of pursuing his political activities in Ukraine after having been deprived of Ukrainian citizenship; under Article 13 – about the alleged lack of effective domestic remedies in respect of his complaints under Articles 3, 5 and 8; and under Article 18 in conjunction with Article 8 – that the decision to divest him of Ukrainian citizenship had been politically motivated.

11. While the applicant has confirmed his wish to pursue his application on several occasions (most recently on 10 November 2022), he has not provided the Court with any factual update since March 2018. The relevant events which have taken place since that date are known to the Court through public sources.

12. It appears that, following the dramatic change in the applicant's situation on 28 May 2019 (see paragraph 7 above) – namely, after his Ukrainian citizenship had been restored, he had successfully resumed his political activities in Ukraine and had obtained at least some preliminary findings by the investigation authorities in respect of the alleged violations of his rights in the period 2017-2018, – nothing prevented him from pursuing his complaints at the domestic level. In any event, he has not informed the Court of any obstacles in that regard.

13. Having regard to the well-established case-law principles concerning the obligation to exhaust domestic remedies (see, for example, *Vučković and Others v. Serbia* (preliminary objection) [GC], nos. 17153/11 and 29 others,

§§ 69-76, 25 March 2014), and in the absence of any explanations from the applicant, the Court considers that all his complaints, except the one under Article 13 of the Convention, should be rejected for non-exhaustion of domestic remedies. In so far as his complaint under Article 13 is concerned, the Court considers it manifestly ill-founded.

14. It follows that the application must be rejected in accordance with Article 35 §§ 1, 3 (a) and 4 of the Convention.

For these reasons, the Court, unanimously,

*Declares* the application inadmissible.

Done in English and notified in writing on 29 June 2023.

| | |
|---|---|
| Martina Keller<br>Deputy Registrar | Carlo Ranzoni<br>President |